X PRIVACY LAW

LEGAL MEMORANDUM

To: ABC Father **From:** X Privacy Law **Re:** YouTube collection of information about your 10-year-old son

Confidential - preliminary client assessment | Prepared from the facts provided; we have not reviewed the account, notices, privacy settings, or Google/YouTube records.

Bottom line

If YouTube/Google collected your son's identifiable personal information while it knew he was under 13, and did so outside a COPPA exception without verifiable parental consent, that may violate federal COPPA. A home address is expressly covered; a name is covered; age or gender alone are not enumerated COPPA data types, but become covered when tied to an identifier. The facts are not yet enough to conclude a violation: the key questions are what was collected, by which Google service, how it was used/shared, whether the service had actual knowledge of his age, and whether a parent had already consented through account setup or supervision.

COPPA: the main legal issue

The Children's Online Privacy Protection Act (COPPA), 15 U.S.C. §§ 6501–6506, and FTC Rule, 16 C.F.R. pt. 312, apply to operators of websites/services directed to children under 13 and to general-audience services with *actual knowledge* they are collecting personal information from a child under 13. Before collecting, using, or disclosing covered information, an operator generally must give direct notice to a parent and obtain verifiable parental consent. Narrow exceptions exist (for example, limited one-time responses or certain internal operations); they do not authorize unrestricted profiling or advertising.

The Rule defines personal information to include a child's first and last name, home or other physical address, online contact information, persistent identifiers, and certain location data. Other information about a child or parent is covered when combined with one of those identifiers. Thus, an identifiable name and street address are squarely covered. Age and gender are not individually listed categories, but an age or gender attached to a child's name/account or identifier is likely covered as combined information. An entered birth date of 10 can also be powerful evidence that the operator had actual knowledge the user was under 13. (16 C.F.R. §§ 312.2, 312.3, 312.4–.5.)

Application to YouTube

YouTube is not automatically treated as a child-directed service in every context. But its general-audience label would not resolve the issue if the relevant service or channel was child-directed, or if Google/YouTube actually knew this account belonged to a 10-year-old. Knowledge could arise from a birth date, a child account, parent-supervised account records, or other reliable account signals. We must distinguish information your son typed in from data inferred or collected in the background (such as device identifiers, location, or viewing/activity data). If the account was set up or supervised by a parent, Google may assert consent was obtained; account terms alone may not establish valid COPPA consent for every use or disclosure.

> **Initial assessment: The alleged collection is legally significant, especially any home address and identifiers linked to age 10. It is not yet proof of an unlawful collection. The strongest case would show (1) identifiable child data, (2) actual knowledge/directing to children, (3) no valid parental consent or exception, and (4) use, retention, or disclosure beyond what was permitted.**

California law and relevant cases

California privacy laws

California Consumer Privacy Act (CCPA), as amended. Names, addresses, account identifiers, and viewing information can be “personal information”; precise geolocation is “sensitive personal information.” The CCPA applies only if the relevant business meets statutory thresholds (which a large platform may, but that must be confirmed). It requires collection notices and gives rights to know/access, delete, and correct, subject to exceptions. A business that actually knows a consumer is under 16 may not sell or “share” that child’s information without affirmative opt-in; for a child under 13, a parent/guardian must authorize it. This is not a blanket parental-consent rule for all collection. (Cal. Civ. Code §§ 1798.100, 1798.120(c), 1798.135.)

CalOPPA. California’s Online Privacy Protection Act requires covered commercial websites/services to post a privacy policy describing categories of personal information collected, sharing practices, and other specified disclosures. It does not itself generally require parental consent before collecting a child’s information. (Cal. Bus. & Prof. Code §§ 22575–22579.)

Other potential California claims. A child could potentially assert intrusion upon seclusion or a California constitutional privacy claim if collection was a serious, highly offensive intrusion into a reasonable privacy expectation. Secret tracking, precise location, or deceptive acquisition of a home address is more concerning than information knowingly entered into a clearly disclosed form. A California Unfair Competition Law claim may be possible, but private plaintiffs generally must show lost money or property and can seek only restitution/injunction, not damages. (Cal. Const. art. I, § 1; Cal. Civ. Code § 1708.8 is not a general online-data statute; Cal. Bus. & Prof. Code §§ 17200, 17204.)

Important limitation: the CCPA’s private right to sue is narrow. It generally applies to certain unauthorized access/exfiltration/theft of unencrypted personal information caused by a business’s failure to use reasonable security—not ordinary collection or a privacy-notice violation. Most CCPA enforcement is by the California Privacy Protection Agency and Attorney General. (Cal. Civ. Code § 1798.150.)

What the cases suggest

FTC v. Google LLC (2019). The FTC and New York alleged that YouTube knowingly collected persistent identifiers from children watching child-directed channels and used them for targeted advertising without the required notice and parental consent. Google/YouTube settled for $170 million and agreed to compliance measures, including a channel designation system. The settlement is strong evidence that COPPA can apply to child-directed portions of YouTube even though the platform also serves adults; it was a consent resolution, not a trial finding that every YouTube collection is unlawful. (Complaint and stipulated order, No. 1:19-cv-02642 (D.D.C. Sept. 4, 2019).)

In re Nickelodeon Consumer Privacy Litigation, 827 F.3d 262 (3d Cir. 2016). In a case about children’s online tracking, the court held COPPA does not itself give individuals a private right to sue and rejected a privacy theory where the plaintiffs had not shown a reasonable expectation that the browsing information was secret. It is not binding in California, but it underscores two practical points: COPPA complaints go to regulators, and any private state-law case needs proof of a separate claim and a real privacy intrusion.

California privacy standard. California courts require a legally protected privacy interest, a reasonable expectation of privacy, and a serious invasion; the court then balances the intrusion against competing interests. Secret collection of a child’s home address or location may strengthen the case, but the result depends on disclosures, account setup, and what data was actually captured. (Hill v. NCAA, 7 Cal. 4th 1 (1994); Shulman v. Group W Prods., Inc., 18 Cal. 4th 200 (1998).)

Options and recommended next steps

1. Preserve evidence before changing the account

Save screenshots and exports showing the child's profile/birth date, account type and supervision, privacy/ad settings, videos viewed, location permissions, and any "made for kids" labels. Preserve Google emails, notices, consent/verification records, and the exact screens where the child or parent supplied a name, gender, age, or address. Record dates, devices, and whether the address was entered, inferred, or obtained elsewhere. Avoid deleting the account until relevant records are saved.

2. Send a formal parent privacy request to Google/YouTube

Ask Google to identify all data collected about the child, the source and purpose, recipients/advertisers, retention period, and any parental-consent record; provide a copy; stop further collection/use/disclosure where applicable; and delete the child's information/account data. State that the request is made as the child's parent and specifically invokes COPPA parental access and deletion rights (16 C.F.R. § 312.6) and applicable CCPA rights. Separately request opt-out of sale/sharing, and withdraw any prior consent. Keep submission and response receipts. A CCPA response is generally due within 45 days, subject to a permitted extension.

3. Escalate to regulators if records support a violation

File a complaint with the FTC and the California Attorney General; consider a complaint to the California Privacy Protection Agency for CCPA issues. COPPA can be enforced by the FTC and state attorneys general, but the family cannot sue under COPPA alone and a regulator complaint does not itself provide individual damages. Regulatory review is particularly appropriate if Google confirms actual knowledge of age 10, collection of an address/identifiers, no valid parental consent, or targeted-ad disclosure.

4. Evaluate a California civil claim only after facts are confirmed

Potential claims may include intrusion upon seclusion, California constitutional privacy, negligence, or (if statutory standing and a remedy exist) an Unfair Competition Law claim. A CCPA damages claim is unlikely unless the facts involve a qualifying data breach/security failure. A private case would require evidence of the collection and harm, face defenses based on disclosure/consent and federal preemption, and may be affected by YouTube/Google terms, arbitration clauses, the child's status as plaintiff, and limitations periods. If pursuing litigation, the minor ordinarily must sue through a properly appointed guardian ad litem; evaluate individual and class-action risks separately.

Recommendation

First preserve the account evidence and obtain Google's data/consent records. On the facts now known, a COPPA concern is plausible but not established; a California claim is more uncertain and depends heavily on whether information was secretly collected or shared and whether the family suffered a legally recognized injury. After the response, we can assess a targeted demand, regulatory referral, or litigation. Do not publicly post the child's account details or sensitive information while investigating.

Key authorities: 15 U.S.C. §§ 6501–6506; 16 C.F.R. pt. 312; Cal. Civ. Code §§ 1798.100, 1798.120, 1798.150; Cal. Bus. & Prof. Code §§ 22575–22579, 17200, 17204; Cal. Const. art. I, § 1; *FTC v. Google LLC*, No. 1:19-cv-02642 (D.D.C. 2019); *In re Nickelodeon Consumer Privacy Litig.*, 827 F.3d 262 (3d Cir. 2016); *Hill*, 7 Cal. 4th 1; *Shulman*, 18 Cal. 4th 200.